



CHAPTER 29

An Act to make provision for persons charged with certain summary offences to plead guilty without appearing before the court; to provide for the proof before magistrates' courts of certain matters; to restrict the power of such courts to issue a warrant for the arrest of an accused person on his failing to appear; to extend the power of such courts with respect to the mitigation of penalties; and for other purposes connected with the purposes aforesaid.

[6th June, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (5) of this section, this section shall apply where a summons has been issued requiring a person to appear before a magistrates' court, other than a juvenile court, to answer to an information for a summary offence, not being—

(a) an offence which is also triable on indictment; or

(b) an offence for which the accused is liable to be sentenced to be imprisoned for a term exceeding three months,

and the clerk of the court is notified by or on behalf of the prosecutor that the following documents have been served upon the accused with the summons, that is to say—

(i) a notice containing such statement of the effect of this section as may be prescribed; and

(ii) a concise statement in the prescribed form of such facts relating to the charge as will be placed before the court by or on behalf of the prosecutor if the accused pleads guilty without appearing before the court.

(2) Where the clerk of the court receives a notification in writing purporting to be given by the accused or by a solicitor acting on his behalf that the accused desires to plead guilty without appearing before the court, the clerk of the court shall inform the prosecutor of the receipt of the notification and if at the time and place appointed for the trial or adjourned trial of the information the accused does not appear and it is proved to the satisfaction of the court, on oath or in the prescribed manner, that the notice and statement of facts referred to in the foregoing subsection have been served upon the accused with the summons, then—

- (a) the court may proceed to hear and dispose of the case in the absence of the accused, whether or not the prosecutor is also absent, in like manner as if both parties had appeared and the accused had pleaded guilty; or
- (b) if the court decides not to proceed as aforesaid, the court shall adjourn or further adjourn the trial for the purpose of dealing with the information as if the notification aforesaid had not been given:

Provided that—

- (i) if at any time before the hearing the clerk of the court receives an intimation in writing purporting to be given by or on behalf of the accused that he wishes to withdraw the notification aforesaid, the clerk of the court shall inform the prosecutor thereof and the court shall deal with the information as if this section had not been passed;
- (ii) before accepting the plea of guilty and convicting the accused in his absence under this subsection, the court shall cause the notification and statement of facts aforesaid, including any submission received with the notification which the accused wishes to be brought to the attention of the court with a view to mitigation of sentence, to be read out before the court;
- (iii) if the court proceeds under this subsection to hear and dispose of the case in the absence of the accused, the court shall not permit any statement to be made by or on behalf of the prosecutor with respect to any facts relating to the offence charged other than the statement of facts aforesaid except on a resumption of the trial after an adjournment under subsection (3) of section fourteen of the *Magistrates' Courts Act, 1952* (which confers power to adjourn after convicting the accused but before sentencing him) and shall not without adjourning under the said subsection (3) sentence him to any term of imprisonment or to any other form of detention, or order him to be subject to any disqualification.

(3) Subsection (2) of section fifteen of the Magistrates' Courts Act, 1952 (which provides that where a magistrates' court, instead of proceeding in the absence of the accused, adjourns or further adjourns the trial, the court may issue a warrant for the arrest of the accused) shall not apply to an adjournment by reason of the requirements of paragraph (b) of the last foregoing subsection or to an adjournment on the occasion of the accused's conviction in his absence under that subsection; and, in relation to such an adjournment, the notice required by subsection (2) of section fourteen of that Act (which provides that an adjourned trial shall not be resumed at the appointed time and place unless the court is satisfied that the parties have had adequate notice thereof) shall include notice of the reason for the adjournment.

(4) Where the court convicts the accused in his absence under subsection (2) of this section of an offence in connection with contributions payable into the Industrial Injuries Fund or the National Insurance Fund on conviction of which it is provided by, or by regulations made under, the National Insurance (Industrial Injuries) Act, 1946, or the National Insurance Act, 1946, that, if notice of intention to do so has been served with the summons, evidence may be given of the failure of the accused to pay certain other contributions so payable and on proof of the failure the accused shall be liable to pay the amount of those other contributions into the appropriate fund aforesaid, then if—

- (a) it is proved to the satisfaction of the court, on oath or in the prescribed manner, that notice has been served as aforesaid specifying the other contributions in respect of which the prosecutor intends so to give evidence; and
- (b) the clerk of the court has received a statement in writing purporting to be made by the accused or by a solicitor acting on his behalf to the effect that if the accused is convicted in his absence of the offence charged he desires to admit failing to pay the other contributions so specified or any of them,

the said Acts of 1946 and any regulations made thereunder shall have effect as if the evidence had been given and the failure so admitted had been proved, and the court shall proceed accordingly.

(5) The Secretary of State may by order made by statutory instrument provide that this section shall not apply in relation to such offences in addition to those specified in paragraphs (a) and (b) of subsection (1) of this section as may be specified in the order, and any order under this subsection—

- (a) may vary or revoke any previous order thereunder; and
- (b) shall not be made unless a draft thereof has been approved by resolution of each House of Parliament.

Proof of
identity of
driver of
vehicle.

20 & 21 Geo. 5.
c. 43.
4 & 5 Eliz. 2.
c. 67.

2. Where on the summary trial of an information for an offence in the case of which subsection (3) of section one hundred and thirteen of the Road Traffic Act, 1930, as extended by section thirty-two of the Road Traffic Act, 1956, gives power to require information as to the identity of the driver of a vehicle—

- (a) it is proved to the satisfaction of the court, on oath or in the prescribed manner, that a requirement under the said subsection (3) to give information as to the identity of the driver of the particular vehicle on the particular occasion to which the information relates has been served on the accused by post; and
- (b) a statement in writing is produced to the court purporting to be signed by the accused that the accused was the driver of that vehicle on that occasion,

the court may accept that statement as evidence that the accused was the driver of that vehicle on that occasion.

Proof of
previous
convictions.

3. Where a person is convicted of a summary offence by a magistrates' court, other than a juvenile court, and it is proved to the satisfaction of the court, on oath or in the prescribed manner, that not less than seven days previously a notice was served on the accused in the prescribed form and manner specifying any alleged previous conviction of the accused of a summary offence proposed to be brought to the notice of the court in the event of his conviction of the offence charged, and the accused is not present in person before the court, the court may take account of any such previous conviction so specified as if the accused had appeared and admitted it.

Amendment as
to arrest of
accused
on non-
appearance.

4. In paragraph (b) of the proviso to subsection (2) of section fifteen of the Magistrates' Courts Act, 1952 (which provides that where the court adjourns by reason of the non-appearance of the accused after having received any evidence, either on that or on a previous occasion, it shall not issue a warrant under that section for the accused's arrest unless it thinks it undesirable, by reason of the gravity of the offence, to continue the trial in his absence), for the words "after having received any evidence, either on that or on a previous occasion" there shall be substituted the words "after having, either on that or on a previous occasion—

- (i) received any evidence; or
- (ii) convicted the accused without hearing evidence on his pleading guilty, whether under subsection (3) of section thirteen of this Act or under subsection (2) of section one of the Magistrates' Courts Act, 1957."

5. Section twenty-seven of the Magistrates' Courts Act, 1952 Mitigation of (which confers upon a magistrates' court certain powers with penalties. respect to the mitigation of penalties in the case of offences under any enactment passed before the commencement of that Act) shall have effect, and be deemed always to have had effect, as if in subsection (1) of that section for the words "passed before" there were substituted the words "whether passed before or after".

6.—(1) This Act may be cited as the Magistrates' Courts Act, Citation, construction, extent and commencement.
1957.

(2) This Act shall be construed as one with the Magistrates' Courts Act, 1952, and that Act and this Act may be cited together as the Magistrates' Courts Acts, 1952 and 1957.

(3) This Act shall not extend to Scotland or to Northern Ireland.

(4) Sections one, two and three of this Act shall come into force at the expiration of the period of three months beginning with the date of its passing.

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